

(2) The provisions of this Act shall be in addition to and shall not affect any other enactment for the appointment of relating to members of the Judicial Committee.

Section 1

SCHEDULE.

British India.
The Dominion of Canada.
The Commonwealth of Australia.
The Dominion of New Zealand.
Cape of Good Hope.
Natal.
Transvaal.
Orange River Colony.
Newfoundland.

CHAPTER 52.

An Act to amend the Post Office Savings Bank Acts, 1861 to 1908, with respect to deposits by the Public Trustee.
[21st December 1908.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

Printed by
H. K. 1914.

1.—(1) Such of the provisions of the Post Office Savings Bank Acts, 1861 to 1908, and the regulations made thereunder as relate to the declaration to be made by a depositor, and as prohibit a depositor having more than one account, shall not apply to the Public Trustee ; and accordingly for the purposes of those Acts and regulations each account of the Public Trustee shall be deemed to be the account of a separate depositor, but the Public Trustee shall not open more than one account in relation to any one trust, and regulations shall be made under those Acts for carrying into effect the provisions of this Act, and for sanctioning the transfer to the Public Trustee of deposits standing in the names of deceased depositors whose estates he is administering.

(2) Any person deriving any benefit under any moneys or Government stock standing in the Post Office Savings Bank, in the name of the Public Trustee, may nevertheless open an account in the Post Office Savings Bank or in any other savings bank in his own name without being liable to any penalties imposed by any statute or regulation respecting the opening of accounts in more than one savings bank or of two accounts in the same savings bank.

Act, 1908.

2. This Act may be cited as the Post Office Savings Bank (Public Trustee) Act, 1908, and may be cited with the Post Office Savings Bank Acts, 1861 to 1908, as the Post Office Savings Bank Acts, 1861 to 1908.

CHAPTER 53.

An Act to amend the Law as regards a Landlord's right of Distress for Rent. [21st December 1908.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

1. If any superior landlord shall levy, or authorise to be levied, a distress on any furniture, goods, or chattels of—
 - (a) any under tenant liable to pay by equal instalments not less often than every actual or customary quarter of a year a rent which would return in any whole year the full annual value of the premises or of such part thereof as is comprised in the under tenancy, or
 - (b) any lodger, or
 - (c) any other person whatsoever not being a tenant of the premises or of any part thereof, and not having any beneficial interest in any tenancy of the premises or of any part thereof,

Under tenant or lodger, if a distress levied to make declaration that immediate tenant has no property in goods distrained

or arrears of rent due to such superior landlord by his immediate tenant, such under tenant, lodger, or other person aforesaid may serve such superior landlord, or the bailiff or other agent employed by him to levy such distress, with a declaration in writing made by such under tenant, lodger, or other person aforesaid, setting forth that such immediate tenant has no right of property or beneficial interest in the furniture, goods, or chattels so distrained or threatened to be distrained upon, and that such furniture, goods, or chattels are the property or in the lawful possession of such under tenant, lodger, or other person aforesaid, and are not goods or live stock to which this Act is expressed not to apply ; and also, in the case of an under tenant or lodger, setting forth the amount of rent (if any) then due to his immediate landlord, and the times at which future instalments of rent will become due, and the amount thereof, and containing an undertaking to pay to the superior landlord any rent so due or to become due to his immediate landlord, until the arrears of rent in respect of which the distress was levied or authorised to be levied have been paid off, and to such